

		Moreover, there is no indication Petitioners served notice of this hearing. The court endeavored to serve notice on all parties identified in the arbitration award, but the foregoing switch in counsel has complicated those efforts. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE to all Petitioner to address these concerns through a new filing. Petitioners are ordered to give notice.
5.	<i>In re: 206-208 W. Electric Ave., La Habra, CA 90631</i> <i>2026-01574411</i>	Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 206-208 W. Electric Avenue, La Habra, California 90631, and owned by judgment debtors the Peter Seh Living Trust 2001 dated September 13, 2001, and Jonathan Seh (collectively, Debtors). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770. The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. Those documents must be served on the Debtors either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. Creditors filed proofs of service showing they effectuated substitute service on the occupants of the property by serving the application for order of sale and the order to

		show cause. The proofs of service, however, fail to show Creditors served the notice of the hearing in the form prescribed by the Judicial Council. As for service on Debtors, Creditors filed a document entitled "Proof of Service by Mailing of Order to Show Cause." The documents attached, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service, and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which any party is served. One of the Debtors is a trust, and therefore must be served by service on the trustee in that capacity. The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the "Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750)." There, however, is no proof of service showing this supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770. Creditors' counsel is ordered to give notice of this ruling
6.	<i>In re: 5353 Barrett Circle, Buena Park, California 90621</i> <i>2026-01557436</i>	Before the court is the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale that petitioner Western Progressive, LLC (Petitioner) filed on March 20, 2026. The petition is filed under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on December 18, 2024, regarding the property located at 5353 Barrett Circle, Buena Park, California 90621 (Property). After paying off the trust deed and all senior liens, and after deducting its fees and expenses, Petitioner seeks to deposit the surplus funds of \$396,426.41 with the court and be discharged from responsibility for the